NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT-II), CHANDIGARH

CP (CAA) No. 49/CHD/PB/2025
(Second Motion)

(A Petition under sections 230 to 232 and 234 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF ARRANGEMENT AMONGST:

M A PIPES PRIVATE LIMITED
Through its Director/Authorized Representative Sh. Jagsir Singh
having its registered office at
Sangrur Road, Dirba Distt., Sangrur,
Punjab - 148035
CIN: U27106PB1999PTC022705
PAN: AACCM0209Q

...Petitioner Company No. 1/ Transferor Company No. 1

And

GARG PIPES PRIVATE LIMITED
Through its Director/Authorized Representative Sh. Jagsir Singh
having its registered office at
Sangrur Road, Dirba Distt., Sangrur,
Punjab - 148035
CIN: U27106PB1999PTC022706
PAN: AABCG1347G

... Petitioner Company no. 2/ Transferor Company No. 2

And

NORTH INDIA AGRO PRIVATE LIMITED
Through its Director/Authorized Representative Sh. Jagsir Singh
having its registered office at
SCO 27, New Grain Market,
Dirba, Distt. Sangrur, Punjab
CIN: U29293PB1997PTC020482
PAN: AABCN0113F

... Petitioner Company no. 3/ Transferor Company No. 3

With

DIRBA PIPES PRIVATE LIMITED
Through its Director/Authorized Representative Sh. Megh Raj
having its registered office at
New Grain Market, Dirba Mandi,
Distt. Sangrur, Punjab – 148035
CIN: U25209PB1994PTC014130
PAN: AABCD0505H

... Petitioner Company No. 4/ Transferee Company

Order delivered on: 12.05.2026

CORAM: SHRI KAUSHALENDRA KUMAR SINGH, MEMBER (TECHNICAL)
SHRI KHETRABASI BISWAL, MEMBER (JUDICIAL)

Appearance:

For the Petitioner Companies	:	Mr. Shubham Gupta, Advocate
For the ROC Chandigarh/RD	:	Dr. Kishor Kumar Devarwade, Assistant Director
For the Income Tax Department	:	Mr. Varun Issar, Senior Standing Counsel
For the OL	:	Mr. Edward Augustine George, Advocate

ORDER

1. The present Joint Company Petition has been filed by the Petitioner Companies, namely; **M A Pipes Private Limited**, (hereinafter referred to as "Petitioner Company No. 1"/ "Transferor Company No. 1")**, Garg Pipes Private Limited,** (hereinafter referred to as "Petitioner Company No. 2"/ "Transferor Company No. 2")**, North India Agro Private Limited,** (hereinafter referred to as "Petitioner Company No. 3"/ "Transferor Company No. 3") and **Dirba Pipes Private Limited** ("Petitioner Company No. 4"/ "Transferee Company") (hereinafter collectively referred to as "Petitioner Companies"), under Sections 230 to 232 of the Companies Act, 2013 (hereinafter referred to as 'the Act')

read with the Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016 (hereinafter referred to as 'Rules') seeking sanction of the Scheme of amalgamation of the Transferor Companies into and with the Transferee Company (hereinafter referred as '**Scheme'**). A copy of the Scheme is annexed as **Annexure P-6** to the Petition.

2. The Petitioner Companies had jointly filed the First Motion Application bearing CA(CAA)No. 42/Chd/Pb/2025 seeking directions for dispensing with the requirement of convening meetings of its Shareholders, Unsecured Creditors and Secured Creditors. This Tribunal, vide Order dated 10.10.2025 dispensed with the requirement of convening the meetings of all the respective Equity Shareholders, Preference Shareholders, Secured Creditors, and Unsecured Creditors of the Petitioner Companies.

3. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have already been discussed in details in the First Motion Order dated 10.10.2025, and are not being reiterated herein for the sake of brevity. The Board of Directors of the Petitioner Companies, on 16.07.2025, in their respective meetings, considered and approved the proposed Scheme of Amalgamation, subject to all applicable regulatory approval(s), the approval of the creditors and shareholders and the sanctioning of the same by the Adjudicating Authority. The certified true copy of the Board Resolution approving the Scheme of the Petitioner Companies is attached as Annexure P-10, P-14, P-18 and P-22 to the Petition.

4. This Tribunal *vide* Order dated 30.10.2025 directed that the notice of hearing be published in two prominently circulating national daily newspapers namely, "Financial Express" (English Edition) and "Ajit" (Punjabi Edition)

calling for objections, if any. The Petitioner Companies were also directed to issue notice to the statutory and regulatory authorities. In compliance with this Order, the Petitioner Companies filed a joint Affidavit dated 05.01.2026 confirming issuance of notices to concerned statutory authorities and publication of notices of the Company Petition in the "Financial Express" (English Edition) and "Ajit" (Punjabi Edition) on 24.11.2025. Furthermore, an Affidavit dated 05.01.2026 was filed by the Petitioner Companies conforming to non-receipt of any objection to the Scheme pursuant to the newspaper publications as directed by this Tribunal vide Order dated 30.10.2025.

5. In response to the above-mentioned notices, the statutory authorities furnished their Reports and the Petitioner Companies have filed their clarification thereon which are as follows:

5.1. **Official Liquidator**

The Official Liquidator, vide, diary No. 02792/2 dated 19.12.2025, has reproduced the information on the incorporation of the Petitioner Companies, their capital structure, financial highlights, shareholding, etc. It is stated in the Report of the Official Liquidator that the office of the Official Liquidator **does not have any specific observations/objections**.

5.2. **Regional Director (RD) and Registrar of Companies (RoC)**

The report of the Regional Director (hereinafter to be referred as 'RD'), together with the report of Registrar of Companies (hereinafter to be referred as 'RoC') have been filed dated 02.01.2026. The RD/RoC **did not have any specific observation/objections** on the basis of the facts in the joint petition and documents provided by the company, along with the rationale of the scheme.

5.3. **Income Tax Department**

The Income Tax Department (hereinafter referred to as '**ITD'**) has filed its report with respect to Petitioner Companies vide Diary No. 02792/1 dated 20.11.2025. The ITD, in its report, has stated that the office of ITD has **no objection** to the Scheme of Amalgamation. However, ITD has further sought that "*All the compliances under the Income Tax Act, 1961 shall be made by the amalgamated entity after the effective date of merging. All the tax liabilities and all the pending appeals and proceedings, if any under the Income Tax Act shall be enforced and continued against the amalgamated entity*". The Petitioner Companies filed their response, vide, Diary Nos. 02792/5 dated 05.01.2026, wherein the Petitioner Companies submitted that the Transferee Company shall continue to exist as a going concern and all the tax liabilities, pending appeals and proceedings, if any under the Income Tax Act shall be enforced and continued against the Transferee Company.

6. The Statutory Auditors of all the Petitioner Companies have examined the Scheme in terms of provisions of Section 232 of the Act and rules made thereunder. The certificate of the Statutory Auditors with respect to the Scheme between Petitioner Companies to the effect that the accounting treatment proposed in the Scheme is in compliance with applicable Indian Accounting Standards (Ind AS) as specified in Section 133 of the Act read with Rules made thereunder and other Generally Accepted Accounting Principles is annexed as Annexure P-24 to the Petition.

7. We have considered the submissions made by the learned Counsel for the Petitioner Companies as well as the Authorities and have gone through the material available on record carefully.

8. On the basis of the facts and submissions made by the learned counsel and on perusal of the Scheme, the Scheme of Amalgamation between the Petitioner Companies appears to be prima facie in compliance with all the requirements stipulated under the relevant Sections of the Companies Act, 2013. In the light of clarification given by the Petitioner Companies, the observations as made by the Statutory/ Regulatory authorities do not appear to have any impediments in sanctioning the proposed Scheme of Arrangement. We are of the considered view that the proposed Scheme is bona fide and in the interest of the shareholders and creditors. Since, all the requisite statutory compliance has been fulfilled, this Tribunal sanctions the Scheme of Amalgamation appended as Annexure P-6 to the Petition.

9. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, rules, or regulations, the sanction granted by this Tribunal to the Scheme will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the Petitioner Companies.

10. While approving the Scheme as above, it is clarified that this Order should not be construed as an Order in any way granting exemption from payment of stamp duty, taxes or any other charges if any, due or required in accordance with law or in respect to any permission/compliance with any other requirement, which may be specifically required under any law for the time being in force.

11. Further, the Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not

in accordance with the applicable provisions of the Income Tax Act, 1961, then the Income Tax Department shall be at the liberty to initiate appropriate course of action in accordance with the law. Any sanction of the scheme of arrangement under section 230-232 of the Companies Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

12. **THIS TRIBUNAL DO FURTHER ORDER:**

(i) The Scheme of Amalgamation of the by M A Pipes Private Limited, ("Petitioner Company No. 1"/ "Transferor Company No. 1"), Garg Pipes Private Limited, ("Petitioner Company No. 2"/ "Transferor Company No. 2"), North India Agro Private Limited, ("Petitioner Company No. 3"/ "Transferor Company No. 3") and Dirba Pipes Private Limited ("Petitioner Company No. 4"/ "Transferee Company") annexed as "Annexure P-6" to the Petition is hereby sanctioned and it is declared that the Transferor Companies (Petitioner Companies No. 1 to 3) respectively shall be dissolved without winding up and the same shall be binding on the Petitioner Companies and their shareholders and creditors and all concerned under the Scheme.

(ii) All the properties, rights, and powers of the Transferor Companies shall stand transferred, without any further act or deed, to the Transferee Company. Accordingly, in accordance with Sections 230 to 232 of the Companies Act, 2013, the same shall be transferred to and vested in the Transferee Company for all the estates and interests of the

Transferor Companies, subject, however, to all charges, encumbrances, or liabilities now affecting the same;

(iii) All the liabilities and duties of the Transferor Companies be transferred, without further act or deed, to the Transferee Company, and accordingly the same shall pursuant to Sections 230 to 232 of the Act, be transferred to and become the liabilities and duties of the Transferee Company, respectively;

(iv) All benefits, entitlements, incentives and concessions under incentive schemes and policies that the Transferor Companies is entitled to including under Customs, Excise, Service Tax, VAT, Sales Tax, GST and Entry Tax and Income Tax laws, subsidy receivables from Government, grant from any governmental authorities, direct tax benefit/exemptions/deductions, shall, to the extent statutorily available and along with associated obligations, stand transferred to and be available to the Transferee Company, as if the Transferee Company was originally entitled to all such benefits, entitlements, incentives and concessions;

(v) All proceedings, if any, pending by or against the Transferor Companies shall be continued by or against the Transferee Company.

(vi) All contracts of the Transferor Companies which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company, and be in full force and effect in favour of the Transferee Company, as the case may be, and be enforced by or against it as fully and effectually as if, instead of the

Transferor Companies, the Transferee Company, had been a party or beneficiary or obliged thereto.

(vii) All the employees of the Transferor Companies shall be deemed to have become the employees and the staff of the Transferee Company, with effect from the Appointed Date, and shall stand transferred to the Transferee Company, as the case may be, without any interruption of service and on the terms and conditions no less favorable than those on which they are engaged by the Transferor Companies, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits;

(viii) The Appointed Date for the Scheme shall be **01.04.2025** as mentioned in the Scheme;

(ix) Upon this Scheme becoming effective and in consideration for Amalgamation of the Transferor Companies with the Transferee Company, in terms of this Scheme, the Transferee Company shall issue and allot equity shares to the shareholders of the Transferor Companies whose names appear in the register of members of the Transferor Companies as on the Record Date. The Transferee Company shall, without further application, allot to the existing members of the Transferor Companies shares of the Transferee Company to which they are entitled under the said Scheme;

(x) The authorized share capital of the Transferee Company, after the Scheme becoming effective, shall be in accordance with Section 232(3)(i) of the Companies Act, 2013 and the fee, if any, paid by the Transferor

Companies on its authorized capital shall be set off against any fees payable by the Transferee Company on its authorized capital subsequent to this amalgamation. Further, the Transferee Company shall be bound by its undertaking on behalf of the Transferor Companies;

(xi) The Transferee Company shall file the revised Memorandum and Articles of Association with the concerned ROC and further make the requisite payments of the differential fee, if any, for the enhancement of authorized capital of the Transferee Company after setting off the fees paid by the Petitioner Companies 1-3 (Transferor Companies).;

(xii) The Petitioner Companies will furnish a self-certified copy of the approved Scheme and Schedule of Assets of the Transferor Companies to the Designated Registrar of this Tribunal. The Designated Registrar will issue a certified copy of this Order together with the authenticated copy of the approved Scheme and Schedule of Assets as its enclosures. All the Authorities are directed to act on the certified copy of this order as issued by the Designated Registrar;

(xiii) The Petitioner Companies are directed to file the certified copy of this Order along with the copy of Scheme with the concerned Registrar of Companies, electronically along with e-form INC-28 within 30 days or an extended timeline with payment of additional fees, as may be applicable, from the date of receipt of the Order. Following that, necessary steps shall be taken up by the Registrar of Companies;

(xiv) The Transferee Company is directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the Transferor

Company, duly authenticated by the Designated Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of receipt of the Order;

(xv) Any person interested shall be at liberty to apply to this Tribunal in the above matter for any directions that may be necessary.

(xvi) All the concerned Regulatory Authorities are to act in accordance with the Order annexed with the Scheme duly authorised by this Designated Registrar of this Bench.

13. Accordingly, the Company Petition bearing **CP(CAA)No.49/Chd/Pb/2025** stands **allowed** and **disposed of**.

Sd/-
Khetrabasi Biswal
Member (Judicial)

Sd/-
Kaushalendra Kumar Singh
Member (Technical)

Inderjeet